

The Bengal Government Indemnity Regulation, 1822

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State of Bihar - Act

The Bengal Government Indemnity Regulation, 1822

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The Bengal Government Indemnity Regulation, 1822

Act 11 of 1822

Published on 22 November 1822

Commenced on 22 November 1822

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The Bengal Government Indemnity Regulation, 1822

(Bengal Regulation 11 of 1822)

[Dated 22nd November, 1822]

A Regulation [* * *]

[The words 'for modifying and explaining the existing Regulations relative to the sale of land for the recovery of arrears of revenue were repealed by the Amending Act, 1891 (12 of 1891).]

for declaring Government not to be liable for any errors or irregularities in the proceedings of the Courts of Justice, and for making further provision for the conduct of the Revenue-officers in certain cases.

1.

(Preamble).

- Repealed by the Bengal Land-Revenue Sales Act, 1841 (12 of 1841):-

2.

(Repeals).

- Repealed by the Amending Act, 1803 (1 of 1803).

3.

to 35. (Public sale of lands for arrears of revenue).

- Repealed by the Bengal Land-Revenue Sales Act, 1841 (12 of 1841).

36.

Rules for khas management applied to purchases by Government.

- If a Collector, shall at any time, being so instructed by either the Government or the [Board]

[For the present constitution and powers of the Board of Revenue, see the Bihar and Orissa Board of Revenue Act' 1913 (B & O Act, 8 of 1913).]

, purchase on account of Government an estate exposed to sale for the recovery of arrears of revenue, the Rules applicable to the management of ordinary malguzari mahals held khas or farmed shall be considered applicable to such estate also to all other estates the property of Government, according as they may be held khas or let in farm.

37.

(Collector's power to punish for contempt).

- Repealed by the Bengal Land-revenue Sales Act, 1841 (12 of 1841).

38.

Government not liable for errors of Courts.

- It is hereby declared and enacted that [the Government]

[Substituted by the Adaptation of Laws Order for the 'Crown'.]

is not and shall not be held liable for any error or irregularity which may have occurred, or shall occur, in any order, proceeding or decree of any Court of Judicature, whether a revenue or other officer of [the Government]

[Substituted by the Adaptation of Laws Order for the 'Crown'.]

may or may not have been, or shall or shall not be, employed in giving effect to the order, proceeding or decree deemed to be erroneous or irregular.

Nor shall any officer of [the Government]

[Substituted by the Adaptation of Laws Order for the 'Crown'.]

be held liable for anything done or suffered in conformity with an order, proceeding or decree of Court as aforesaid, or any officer of [the Government]

[Substituted by the Adaptation of Laws Order for the 'Crown'.]

and if any person or persons shall sue [the Government]

[Substituted by the Adaptation of Laws Order for the 'Crown'.]

for anything done or suffered under an order, proceeding or decree of Court as aforesaid, such person or persons shall be non-suited, with costs.

The same principle is and shall be held applicable to all orders, proceedings or decree made, held or passed by any public officer, in virtue of powers vested in him for the judicial cognizance of any pleas, suits, complaints or information's whatsoever, unless otherwise specially provided.

39.

(Saving of Bengal Repealed 1 of 1821).

- Repealed by the Bengal Land-revenue Sales Act, 1841 (12 of 1841.)

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